

ORDINANCE NO. 108

**AN ORDINANCE OF THE LAMONT PUBLIC UTILITY DISTRICT
AMENDING ORDINANCE 50 AND ESTABLISHING A SEWER USE
ORDINANCE**

The Board of Directors of the Lamont Public Utility District, Lamont, CA, does ordain as follows:

Section 1. Paragraph 2 of Section 11 of Ordinance 50 is hereby deleted.

Section 2. Section 11 of Ordinance 50 is hereby amended by adding Paragraph 3 as set forth in Exhibit "A" attached hereto and incorporated herein.

Section 3. The Sewer Use Ordinance as set forth in Exhibit "B" is hereby adopted.

Section 4. Severability. If any section, subsection, subdivision, sentence, phrase or portion of this Ordinance or the application to any person or place is held to be unconstitutional or invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The Board of Directors declares that it would have adopted this Ordinance and each section, subsection, sentence, clause or phrase of this Ordinance in spite of the fact that any one or more of the same be declared unconstitutional or invalid.

Section 5. The District Secretary is hereby ordered and directed to certify the passage of this Ordinance and to cause this Ordinance or a summary thereof to be prepared according to law to be published in accordance with law in a newspaper of general circulation in the District.

PASSED AND ADOPTED this 22nd day of September 2008, by the following vote:

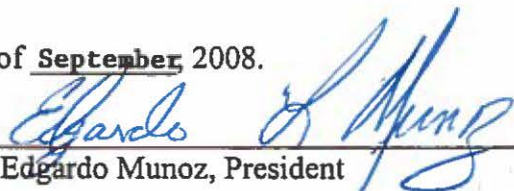
AYES: DIRECTOR MUNOZ, DIRECTOR ALANIZ, DIRECTOR CRUZ, DIRECTOR CUELLAR

NOES: NONE

ABSENT: DIRECTOR CORTEZ

ABSTAIN: NONE

SIGNED AND ADOPTED this 22nd day of September, 2008.


Edgardo Munoz, President

Attest:

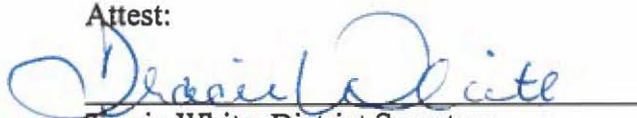

Tracie White, District Secretary



Exhibit "A"

Ordinance 50, Section 11, Paragraph 3:

3. No person owning any premises within the District and no user of any premises within the District on which commercial or industrial waste is produced shall discharge commercial or industrial waste without first obtaining a permit from the General Manager for such connection. All waste discharges shall be controlled by the Sewer Use Ordinance of the District. The issuance of permits pursuant to this paragraph by the General Manager shall be conditioned upon the installation by the applicant of such protective and monitoring devices as shall be determined by the General Manager or the Board.

**LAMONT PUBLIC UTILITY DISTRICT
SEWER USE ORDINANCE**

SECTION 100

SEWERS - GENERAL PROVISIONS

100-1 DEFINITIONS

The definitions given in this Section shall be used in the interpretation of this Resolution, the issuance of permits, the making of charges for service and all other operations of this Resolution unless another meaning for the word is apparent from the context.

- A. "Biochemical Oxygen Demand (B.O.D.)" means the quantity of oxygen utilized in the biochemical oxidation of organic matter in five days at twenty degrees centigrade, as determined by the appropriate procedure in "Standard Methods" expressed in milligrams per liter;
- B. "Board or Board of Directors" shall mean the Governing Board of the Mojave Public Utility District;
- C. "Building" means any structure built for the support, shelter or enclosure of persons, animals, chattels or property of any kind;
- D. "Building drain" means that part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste, and other drainage pipes inside the walls of the building and conveys it to the building connection beginning two feet from the building wall;
- E. "Building sewer" means the extension from the building drain to the public sewer or other place of disposal;
- F. "Cesspool" means an excavation in the ground made for receiving crude sewage and so constructed that the solid matter is retained and the liquid portion is permitted to seep away;
- G. "Chemical Oxygen Demand" or "C.O.D." shall mean the measure of chemically decomposable material in domestic or industrial wastewater expressed in terms of mass per volume (mg/l) as represented by the oxygen utilized as determined by the appropriate procedure described in "Standard Methods";
- H. "Chlorine Demand" shall mean the difference between the amount of chlorine added to a wastewater sample and the amount remaining at the end of a 30-minute period as determined by the procedures given in "Standard Methods";
- I. "Class I user" shall mean any industrial user who:
 - (1) Has a discharge flow of 50,000 gallons or more per normal working day or 12 million gallons or more per year; or,
 - (2) Involves the discharge of wastewater which may contain, at any given time, any of the components as specified in Section 500-2, Prohibited Discharges; or,

- (3) Is subject to federal categorical pretreatment standards as defined by the Environmental Protection Agency (EPA);
- J. "Code" means the Uniform Plumbing Code as adopted by the County from time to time;
- K. "Contiguous Property" shall mean property which is owned or hired by the industrial wastewater discharger, is contiguous to the source of industrial wastewater discharge, and is made up of land parcels with common boundaries or parcels separated only by publicly owned or operated rights-of-way. Publicly owned rights-of-way include those owned or operated by railroad, pipeline, water, power, electrical, gas, telephone or other public utility companies. Only those parcels having a common boundary, if the public right-of-way is removed, shall be considered to be contiguous;
- L. "County" shall mean the County of Kern;
- M. "County Engineer" shall mean the Director of Public Works of the County of Kern;
- N. "Discharger" shall mean any person that discharges or causes a discharge to a public sewer;
- O. "Dissolved Solids" or "dissolved matter" shall mean the solid matter in solution in the wastewater and shall be obtained by evaporation of a sample from which all suspended matter has been removed by filtration as determined by the procedures in "Standard Methods";
- P. "District" shall mean the Mojave Public Utility District which is legally authorized to construct, maintain, and operate a sewer collection system and wastewater treatment and disposal facilities;
- Q. "District Engineer" shall mean the Mojave Public Utility District's consulting engineer, as appointed from time to time;
- R. "District Manager" shall mean the General Manager of the Mojave Public Utility District;
- S. "Domestic sewage" means the waterborne waste associated with human habitation and may be contaminated with human excreta, offal or feculent matter. It also includes wastewater or sewage from the operations of restaurants, hotels, vehicle service stations, garages, single or multiple residences or places of retail business;
- T. "Effluent" means partially or completely treated sewage flowing out of any sewage treatment facility;
- U. "Garbage" means solid food wastes from the domestic and commercial preparation, cooking, and dispensing of food, and from the handling, storage, and sale of produce;
- V. "Grab sample" means a sample of effluent taken at the inspection manhole as a representative of flow at an instant of time;

- W. "Industrial Connection Sewer" shall mean the sewer connecting the building waste drainage system to the public sewer for the purpose of conveying industrial wastewater;
- X. "Industrial liquid waste pretreatment plant" means any works or device for pretreatment of industrial liquid wastes prior to discharge into the public sewer;
- Y. "Industrial waste" means the waterborne waste from industrial manufacturing process, trade, or business as distinct from domestic sewage. It does not include the wastewaters from lunchrooms, toilets or washrooms in industrial establishments;
- Z. "Insanitary" means a condition which is contrary to sanitary principles or is injurious to health and means, in particular, any sewer connection, construction or condition, temporary or permanent, which would permit or make possible by any means whatsoever, for any unapproved foreign matter to enter a domestic or public sewer system or for any sewage to escape a sewer connection or public sewer;
- AA. "Inspector" shall mean a person authorized by the District Manager to inspect wastewater generation, conveyance, processing and disposal facilities;
- AB. "Interceptor" means a device for retaining sand, silt, grit, mineral material, petroleum solvent, grease or oil by gravity-differential separation from wastewater and of a design and capacity approved by the District Manager;
- AC. "Lateral Sewer, Collecting Sewer or Main Line Sewer" shall mean the public sewer, usually 8 inches or larger in diameter, and used to collect wastewater from house connection and industrial connection sewers and transport it to trunk sewers. Lateral, collecting or main line sewers are to be designed and constructed in accordance with District Improvement Standards, and will be maintained by the District;
- AD. "May" is permissible;
- AE. "Natural outlet" means any outlet into a watercourse, pond, ditch, lake or other body of surface or groundwater;
- AF. "Offsite charges" means a charge made by the District to property owners or developers for connecting to the existing public sewage system;
- AG. "Peak Flow Rate" shall mean the flowrate at which wastewater is discharged to a public sewer during the highest 30 minute flow period in the preceding 12 months;
- AH. "Person" means any individual, partnership, corporation, firm, company, association, society or group;
- AI. "pH" means the negative of the logarithm (base 10) of the activity of hydrogen ions expressed in moles per liter of solution;

- AJ. "Private sewage disposal system" means a septic tank, cesspool or such other facilities as may be permitted under this Resolution;
- AK. "Private sewer" means a sewer laid by private parties other than a house connection, to serve one or more buildings which are not immediately adjacent to a public sewer, so as to connect the building or buildings to a public sewer, and irrespective of whether the sewer is constructed in public or private property;
- AL. "Properly shredded garbage" means the food wastes from the preparation, cooking and dispensing of food that has been shredded to such a degree that all particles will be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than one-fourth inch in any dimension;
- AM. "Public Corporation" shall mean this State and any political subdivision thereof, any incorporated municipality therein, any public agency of the State or any political subdivision thereof, or any corporate municipal instrumentality of this State;
- AN. "Public sewer" means a sewer in which all owners of abutting properties have equal rights, and is controlled and maintained by Mojave Public Utility District (M.P.U.D.);
- AO. "Radioactive Material" shall mean material containing chemical elements that spontaneously change their atomic structure by emitting any particles, rays or energy forms;
- AP. "Resolution" shall mean this Domestic and Industrial Waste Discharge Resolution, as enacted by the District's Board of Directors;
- AQ. "Saddle" means the connection installed on a main line sewer by boring a hole in the sewer pipe and installing a prefabricated fitting;
- AR. "Section" shall mean a section of this Domestic and Industrial Waste Discharge Resolution;
- AS. "Septic tank" means an approved water-tight tank or compartment for use in eliminating, disposing, digesting or reducing solid substances in sewage before disposing of the effluent in a cesspool or leaching system;
- AT. "Sewage" means any waterborne wastes transported by the public sewer, except storm water, ground water, roof or yard drainage, and includes domestic sewage, industrial waste and wastewater or contaminated water of any origin;
- AU. "Sewage pumping plant" means any works or device used to raise sewage from a lower to a higher elevation or to overcome friction losses in a sewer line;
- AV. "Sewage treatment plant" means any works or device for the treatment of sewage, except a septic tank or a cesspool;
- AW. "Sewer" means a pipe or conduit for carrying sewage together with appurtenant manholes and cleanouts;

- AX. "Shall" is mandatory;
- AY. "Slug" means any discharge of water, sewage, or industrial waste which in concentration of any given constituent or in quantity of flow exceeds for any period of duration longer than fifteen minutes more than five times the average twenty-four hour concentration or flows during normal operation;
- AZ. "Solid Wastes" shall mean the non-liquid carried wastes normally considered to be suitable for disposal with refuse at sanitary landfill refuse disposal sites.
- BB. "Special sewer" means any public sewer constructed within the boundaries of the District territory annexed to the District or areas outside the District in which the cost was not directly assessed to or borne by the abutting property and which has been, or may hereafter be designated as a "special sewer" by resolution of the Board of Directors;
- BC. "Special sewer fee" means the fee established by resolution of the Board of Directors to be paid by any person, firm or corporation upon issuance of a permit to connect to a special sewer;
- BD. "Standard Methods" shall mean the current edition of Standard Methods for the Examination of Water and Wastewater as published by the American Public Health Association (et al).
- BE. "Storm drain" means any conduit, channel or ditch that carries storm and surface waters and drainage in which a flow of water occurs, either continuously or intermittently, but excludes sewage, industrial wastes and wastewater, other than unpolluted cooling water or irrigation water;
- BF. "Suspended solids" (S.S.) means solids that either float on the surface of, or are in suspension in water, sewage or other liquids, and which are removable by laboratory filtering;
- BG. "Total Organic Carbon (T.O.C.)" shall mean the measure of total organic carbon in domestic or other wastewaters as determined by the appropriate testing procedure as described in "Standard Methods";
- BH. "Trade Secrets" shall include but shall not be limited to any formula, plan, pattern, process, tool, mechanism, compound, procedure, production data, or compilation of information which is not patented, which is known only to certain individuals within a commercial concern who are using it to fabricate, produce, or compound an article of trade or a service having commercial value and which gives its user an opportunity to obtain a business advantage over competitors who do not know or use it;
- BI. "Trunk Sewer" shall mean a sewer designed to receive wastewater from lateral, collecting or main line sewers which is constructed, maintained and operated by the District. Trunk sewers generally do not have house connections or industry connection sewers directly attached;
- BJ. "Uncontaminated Water" shall mean any wasted water of the community not contaminated or polluted with wastewater and which is suitable or could readily be made suitable for discharge to a storm water drainage system or natural drainage area;

BK. "User" shall mean discharger;

BL. "Wastewater" shall mean the water carried wastes of the community derived from human or industrial sources including domestic wastewater and industrial wastewater. Rainwater, groundwater, or drainage of uncontaminated water is not wastewater.

100-2 ADMINISTRATION

Except as otherwise provided herein, the District Manager shall administer, implement and enforce the provisions of this Resolution. Any power granted or duties imposed upon the District Manager may be delegated by the District Manager to persons acting in the beneficial interest of or in the employ of the District.

100-3 SEWER REGULATION APPLICATION TO PUBLIC AGENCIES

The provisions of this Resolution shall be applicable to any building, structure or property situated within the Mojave Public Utility District which is owned, leased, controlled, operated or occupied by the United States, the State of California, the County of Kern or by any public or quasi-public agency, corporation or association.

100-4 DAMAGING OR TAMPERING WITH SYSTEM

No unauthorized person shall maliciously, willfully or negligently break, damage, destroy, uncover, deface or tamper with any structure, appurtenance, or equipment which is a part of the public sewer system. Any person violating this provision shall be in violation of this Resolution and charges shall be filed with the appropriate authority.

100-5 EXCAVATORS RESPONSIBLE FOR DAMAGE

Contractors, utility companies and private and commercial excavators shall locate all sewer lines prior to any excavation work and shall be held responsible for any damage, accidental or willful.

100-6 DUMPING WITHOUT APPROVAL

No persons shall dump or cause to be dumped, into any manhole, cleanout or flushing inlet any materials (solid, liquid, or gaseous) whatsoever without prior approval of the District.

100-7 VIOLATION - NOTICE

- A. The District Manager shall notify any person found to be in violation of this Resolution of any limitation or requirement of a permit issued hereunder before the District Manager takes any action to implement Section 100-9 of the Resolution. The District Manager shall take no action until the elapse of 10 calendar days from date Notice was given.
- B. Unless otherwise provided herein, any notice required to be provided to the District under this Resolution shall be in writing and served in person or by Registered, Certified, or First Class mail. If served by mail, the notice shall be forwarded to the address listed below:

LAMONT PUBLIC UTILITY DISTRICT
8624 Segrue Road
Lamont, CA 93241

Attention: District Manager

- C. Notice shall be deemed to have been given at the time of deposit, postage prepaid, in a facility regularly serviced by the United States Postal Service.

100-8 TIME LIMITS

Any time limit provided in any written notice or in any provision of this Resolution may be extended only by a written directive of the District Manager.

100-9 PENALTY FOR VIOLATION AND CIVIL LIABILITY

- A. Every person violating any provision of this Resolution including the failure to pay any fees, charges or surcharges imposed hereby, or any condition or limitation of a permit or plan approval issued pursuant thereto, is subject to legal action by the District. The District may, upon authorization of its Board of Directors, sue and/or take other appropriate action to recover any amounts due the District under the provisions of State Law and this Resolution. Each day during which any violation continues to occur shall constitute a separate offense.
- B. Any person who intentionally or negligently violates any provision of this Resolution pertaining to the subject matter of either subparagraphs (1) or (2) below, or any condition or limitation of a permit or plan approval related thereto, shall be in violation of this Resolution and shall be civilly liable to the District for actual damages caused by such violation.
- (1) Not pretreating any industrial wastewater which would otherwise be detrimental to the treatment works or its proper and efficient operation and maintenance.
- (2) Not preventing the entry of such wastewater into the collection system and treatment works.

100-10 CEASE AND DESIST ORDERS

When the District finds that a discharge of wastewater has taken place in violation of prohibitions or limitations of this Resolution or the provisions of a wastewater discharge permit, the District Manager may issue a cease and desist order and direct that those persons not complying with such prohibitions, limitations, requirements, or provisions:

- (1) Cease discharge immediately; or
- (2) Comply immediately; or
- (3) Comply in accordance with a time schedule set forth by the District.

100-11 INJUNCTION

Whenever a discharger of wastewater is in violation of the provisions of this Resolution, the District's Attorney may petition the Superior Court for the issuance of a preliminary or permanent injunction, or both, as may be appropriate in restraining the continuance of such discharge.

100-12 LIST OF VIOLATORS

The District Manager may annually publish in the newspaper of general circulation in the Mojave area a list of the industrial users who significantly violated applicable pretreatment requirements or standards at least once during the twelve (12) previous months. The notification may also summarize any enforcement actions taken against the industrial user(s) during the same twelve (12) months. A significant violation is one which remains uncorrected forty-five (45) days after notification by the District.

100-13 TERMINATION OF SERVICE

The District may revoke any wastewater discharge permit or terminate sewerage service for any violation as to any provision of this Resolution. All costs for terminating service shall be paid by the permittee; all costs for reinstituting service shall be paid by the permittee.

100-14 HARMFUL CONTRIBUTIONS

The District may suspend sewerage service when such suspension is necessary, in the opinion of the District Manager, in order to stop an actual discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons, to the environment, causes interference to the District's sewerage facilities, or causes the District to violate any state or federal law or regulation.

100-15 DAMAGE TO FACILITIES

When a discharge of waste causes an obstruction, damage, or any other impairment to District facilities, the District may assess a charge against the user for the work required to clean or repair the facility and add such charge to the user's sewer service charge.

100-16 FALSIFYING OF INFORMATION

Any person who knowingly makes any false statement, representation, record, report, plan or other document filed with the District or who falsifies, tampers with or knowingly renders inaccurate any monitoring device or method required under this Resolution, is subject to the civil liabilities imposed under Section 100-9 of this Resolution.

100-17 SHUT-OFF FROM SEWER SYSTEM

The District Manager shall have the power to temporarily shut off any premises from the use of the public sewerage system and/or any municipal industrial waste pipeline of the District where the occupant or user of such premises is placing in such public sewerage system and/or municipal industrial waste pipeline substances in violation of this Resolution. The General Manager shall report the circumstances of such shut-off to the Board of Directors at its next meeting following such shut-off.

100-18 DETERMINATION OF CHARGES -- FAILURE TO PAY ACTION

At any time hereafter the Board of Directors shall have the right to make charges for the discharge of industrial wastes into the public sewerage system of the District or into any municipal industrial waste pipeline of the District. The same shall be fixed from time to time by resolution of the Board of Directors. Any person who refuses to pay such charges shall not discharge any industrial wastes into any sewer pipe, or municipal industrial waste pipeline within the District, and upon direction of the Board of Directors, the District Manager shall cut off the premises of such person from the use of any sewer, sewer pipe or municipal industrial waste pipeline for the discharge of any industrial wastes.

100-19 RECORDING OF FEES AND CHARGES

The District shall keep a permanent and accurate account of all fees and charges received under this Resolution, containing the names and addresses of the persons on whose account the fees and charges were paid, the date and amount thereof, and the purpose for which charges were paid.

100-20 ESTIMATED QUANTITIES AND VALUES

Unless otherwise provided herein, whenever the fees and charges required by this Resolution are based on estimated values or estimated quantities, the District Manager shall make such determinations in accordance with established estimating practices.

100-21 RECONSIDERATION AND APPEAL PROCEDURES

- A. Any permit applicant, permit holder, authorized industrial wastewater discharger or other discharger adversely affected by any decision, action or determination made by or on behalf of the District in interpreting or implementing the provisions of this Resolution or any permit issued hereto, may file with the District a written request for reconsideration. Such requests shall be received within one year of the date of occurrence of the action in dispute. Such request shall be acted upon by the District Manager within fifteen (15) days from the date of filing.
- B. If the ruling made by the District Manager is unsatisfactory to the person requesting reconsideration, the person may make a written appeal to the Board of Directors within fifteen (15) days after notice of the action taken by the District Manager by filing the same with the District Manager.
- C. The written appeal shall be accompanied by a fee in the amount of Two Hundred Dollars (\$200.00). Within thirty (30) days after the written appeal is filed, the Board of Directors shall hold a hearing on the appeal. At this hearing, the applicant, permit holder, discharger, or appellant may appear in person or through counsel; the District may appear through the District Manager or through counsel; and either side shall be entitled to present evidence and cross-examine witnesses. Notices of the hearing shall be given in accordance with Section 100-7 at least 15 days prior to the date of hearing.

- D. Within forty five (45) days after the hearing is closed, the District shall make a final ruling on the appeal. No decision, action or determination of the District Manager shall be stayed by any procedure authorized by this Section.

100-22 USER CHARGES AND FEES

The District, by Resolution, may annually establish fees and charges for sewage services provided by the District, based upon cost influencing factors such as flow and pollutant mass emission rates and volumes, and the degree of effort required for purposes of billing, inspection, monitoring and administration.

100-23 PAYMENT OF CHARGES AND DELINQUENT CHARGES

- A. All other fees and charges imposed under the provisions of this Resolution are due and payable upon serving a Notice of Charges. Unpaid charges shall become delinquent 45 days after mailing or personal serving of the Notice of Charges.
- B. A basic penalty charge of 10 percent of the original unpaid amount shall be added to any fee or charge that becomes delinquent. Interest at the rate of one and one-half (1-1/2) percent per month shall accrue on the total of all delinquent fees and charges plus all penalty charges. Service may be discontinued after a delinquency of 60 days.

100-24 EXISTING INDUSTRIAL WASTEWATER DISCHARGES

Any person discharging industrial wastewater into the District's collection system without a valid industrial wastewater permit is in violation of this Resolution and is subject to legal action as specified in Section 100-9.

100-25 INSPECTORS

- A. Identification shall be provided by the District for all inspectors and other District authorized personnel who shall identify themselves when entering any property for inspection purposes or when inspecting the work of any contractor.
- B. Inspection of every facility that is involved directly or indirectly with the discharge of wastewater to the District's sewerage systems may be made by the District as deemed necessary. These facilities shall include but not be limited to sewers; sewage pumping plants; pollution control plants; all industrial processes; industrial wastewater generation, conveyance and pretreatment facilities, devices and connection sewers; and all similar sewerage facilities. Inspections may be made to determine that such facilities are maintained and operated properly and are adequate to meet the provisions of this Resolution.
- C. Authorized personnel of the District shall be provided access to all of the above facilities or to other facilities directly or indirectly connected to the District's sewerage system at all reasonable times including those occasioned by emergency conditions. Any permanent or temporary obstruction to easy access to the sewerage facility to be inspected shall promptly be removed by the facility user or owner at the written or verbal request of the District Manager and shall not be replaced.

- D. No person shall interfere with, delay, resist or refuse entrance to an authorized District inspector attempting to inspect any facility involved directly or indirectly with a discharge of wastewater to the District's sewerage systems. Failure to allow timely access to these facilities shall constitute a violation of this Resolution.

100-26 SEVERABILITY

If any provision of this Resolution or the application thereof to any person or circumstances is held invalid, the remainder of the Resolution and the application of such provisions to other persons or circumstances shall not be affected thereby.

SECTION 200

SEWER CONNECTIONS - PERMITS

200-1 REQUIRED

No person, firm or corporation shall make, construct, install, alter, repair or enlarge any building sewer or connect any such building sewer to a public sewer without first obtaining a permit and approval of sewerage construction plans and specifications from the District or the designated representative.

200-2 CLASSES OF PERMITS

There shall be two classes of building sewer permit:

- A. For commercial sewer service;
- B. For service to establishments producing industrial wastes.

In either case, the person or agent shall make application on the forms furnished by the District. Residences do not need permits.

200-3 FEE TO ACCOMPANY APPLICATION

The District Manager shall require payment by the applicant for a fee established by the Board.

200-4 APPROVAL OF PLANS

Any person proposing to construct any type of sewerage facility and/or any public sewer, lateral sewer, building sewer or industrial connection sewer which will discharge directly or indirectly to District sewerage facilities shall obtain District approval of Plans and Specifications as described in Section 300-2 of this Resolution.

200-5 ISSUANCE OF PERMIT

The District will issue a permit for domestic and/or industrial wastewater discharge, or any other permit under this Resolution only if the District is satisfied that the sewerage construction, sewer connection, domestic and/or industrial wastewater discharge or other procedures, conform to the requirements of this Resolution and to the District's Improvement Standards.

200-6 LOCAL SEWER NOT AVAILABLE

Direct attachment of a sewer six inches or smaller in diameter to a trunk sewer will be permitted only if the District Manager determines that a suitable local sewer is not available, that adequate trunk sewer capacity exists, that the connection will function properly, and that the connection will not adversely affect existing or anticipated facilities or operations of the District.

200-7 PERMIT SHALL NOT RELIEVE DISCHARGER OF DUTIES

The approval of plans or the issuance of a permit shall not relieve the discharger of any duty imposed upon him pursuant to this Resolution.

200-8 EXPIRATION OF PERMIT-- EXTENSION

All permits issued pursuant to this Resolution shall be void thirty (30) days after the date the permit is issued. In case all work required to be done under the permit is not completed, the District Manager may grant an extension of time when good cause exists therefor, after which extension of time, the permit will be void.

200-9 PERMIT NOT REQUIRED TO REMOVE STOPPAGE

Nothing in this Resolution shall be deemed or construed to require the application or permit for the purpose of removing stoppages in any building sewer except that done within any public right-of-way.

200-10 WHEN PERMIT NOT ISSUED

No permit shall be issued for the following:

- A. The connection of a building sewer to a sewer main that is not in a dedicated street, alley or within a recorded easement;
- B. The connection of a building sewer to a sewer main that has not been constructed or installed under the supervision and to the satisfaction of the District in accordance with plans, profiles and specifications approved by the District Manager.

SECTION 300

CONSTRUCTION OF SEWERAGE FACILITIES

300-1 DISTRICT SPECIFICATIONS AND STANDARDS

District requirements concerning design criteria, plan checking, pipeline design, pipe material, minimum grades, location, depth, manhole criteria, clearances between water and sewer lines, standard specifications, construction inspection and testing, insurance, and contracts for sewer system improvements are detailed in the most recent publication of Improvement Standards for Sanitary Sewers and Domestic Water Systems published by the District.

300-2 APPROVAL OF PLANS FOR SEWERAGE CONSTRUCTION

- A. The applicant shall submit to the District for review and approval, construction plans, specifications, and other details as required to fully

describe the proposed sewerage facility. The plans shall have been prepared under the supervision of and shall be signed by an engineer of suitable training registered in the State of California.

- B. Plans and Specifications for sewerage construction for any facility which will convey industrial wastewater will not be reviewed by the District until the discharger has first obtained a District Permit for Industrial Wastewater Discharge.
- C. Plans and Specifications for sewerage construction shall comply with the requirements specified in the latest edition of the District's Improvement Standards for Sanitary Sewers and Domestic Water System as described in Section 300-1.
- D. Inspection of all sewerage construction shall be made by personnel of the District, or its authorized representative.
- E. Approval of plans and specifications for sewerage construction shall expire one year after date of approval unless construction has been initiated by that time. The permit shall expire as outlined in Section 200-8.

300-3 PLAN APPROVAL AND PERMITS NOT TRANSFERABLE

Approval of plans for sewerage construction and Connection Permits are not transferable from one person to another person or from one location to another location.

300-4 INSPECTION OF CONSTRUCTION

Periodic inspection by the District during construction and upon project completion will be conducted.

All sewers to be attached directly to a trunk sewer shall be inspected continuously during construction. No physical alteration of the District's facilities shall commence until a District inspector is present.

The Contractor shall notify the District at least three (3) working days in advance of the time the connection is to be performed.

Construction inspection requirements are specified in the "Improvement Standards for Sanitary Sewers and Domestic Water Systems."

300-5 EXPENSE TO BE BORNE BY PROPERTY OWNER

All costs and expense incident to the installation and connection of the building sewer shall be borne by the owner. The owner shall indemnify the District from any loss or damage that may directly or indirectly be occasioned by the installation of the building sewer.

300-6 OBLIGATION FOR BUILDING SEWER

The District does not assume any obligation or expense for maintaining any building sewer from the public sewer to the premises served. All service and expense of operation and maintenance of the public sewer shall be borne by the District.

300-7 TAPPING MAIN LINE SEWER

No person except a qualified licensed contractor, or a person authorized by the District, shall tap a main line sewer. If a person desires to connect a building sewer to a main line sewer and in the opinion of the District Manager, no suitable connection or cleanout exists, such person shall file an application with the District to excavate, bore and saddle the main line. If a main line sewer is to be tapped for the installation of a saddle, such person shall do all excavation work necessary in compliance with applicable District Improvement Standards.

300-8 CONFORMANCE OF BUILDING SEWER

The connection of the building sewer into the public sewer shall conform to the requirements of the building and plumbing code or other applicable rules and regulations of the District. All such connections shall be made gas-tight and water-tight. Any deviation from the prescribed procedures and materials must be approved by the inspector before installation. Mortar, lead or tar joints will not be permitted.

300-9 PROTECTION OF EXCAVATIONS -- RESTORATION OF PROPERTY

All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks, parkways and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the District.

300-10 ABANDONED BUILDING SEWER OR CONNECTION

Any abandoned building sewer or connection shall be plugged or capped at the expense of the owner of the premises which building sewer serves, at a point and in a manner approved by the inspector. The restored use of an abandoned building sewer shall not be approved by the inspector if the line or connections thereto do not meet construction standards at the time of application for reuse.

300-11 INSANITARY BUILDING SEWER -- ORDER TO REPAIR OR REPLACE

If, in the course of inspection process, an existing building sewer is found to be in an insanitary condition, the inspector or their designated representatives shall order the building sewer or connection to be repaired, modified or replaced. It shall be the obligation of the owner of the premises served to comply with such order at the owner's expense.

300-12 CONFORMANCE WITH BUILDING AND PLUMBING REGULATIONS

The size, slope, alignment, materials of a building sewer and the methods to be used in excavating, placing of pipe, jointing, testing and backfilling the trench, shall all conform to the District's Improvement Standards, the requirements and standards of the building and plumbing code, or to other applicable rules, regulations and standards of the County.

300-13 ELEVATION OF SEWER

Whenever possible, the building sewer shall be brought to the building at an elevation below the basement floor. In all buildings, in which any building drain is too low to permit gravity flow to the public sewer, sanitary sewage or water carried by such building drain shall be lifted by an approved means and

discharged to the building sewer. Where possible, upper floors shall be designated to flow by gravity into line flowing to the public sewer, and only the basement area shall be pumped.

300-14 NOTIFICATION PREMISES READY FOR INSPECTION

The applicant for a sewer permit shall notify the inspector when the building sewer is ready for inspection and connection to the public sewer. The connection shall be made under the supervision of the inspector.

300-15 RECONNECTION

If any sewer connection has been discontinued from the public sewer by the inspector for failure to comply with provisions of this Resolution, the applicant shall reapply to the District for a permit to reconnect the building sewer.

300-16 MANHOLE RECONSTRUCTION

The work of adjusting manholes on District sewers to new grades shall be performed by the Contractor and in accordance with established procedures of the District. The person proposing or performing work requiring the adjustment of manholes on District sewers to a new grade, shall coordinate his work with the District.

300-17 OBSERVANCE OF SAFETY RULES

While performing the work designated in this Resolution on private or public property, all parties shall observe all safety rules and regulations applicable under federal, state and county codes. The District shall be held harmless against liability claims and demands for any personal injury, death or property damage.

SECTION 400

INSPECTIONS OF SEWERS

400-1 ENTRY BY DISTRICT INSPECTOR FOR INVESTIGATION

Any inspector of the District may request entry into buildings or premises regulated by this Resolution for the purpose of investigation, inspection, observation, measurement, sampling and testing in accordance with the provisions of this Resolution. The inspector or his representative shall have no authority to demand technical information concerning any processes of any industries beyond that point having a direct bearing on the kind and source of discharge to the public sewers, natural outlets, or facilities for waste treatment.

400-2 OBSERVATION OF SAFETY RULES DURING INVESTIGATIONS

While performing the necessary work on private properties referred to in Section 400-1 above, the inspector or duly authorized employees of the District shall observe all safety rules applicable to the premises established by the company undergoing inspection.

400-3 ENTRY ON PRIVATE PROPERTY TO WHICH DISTRICT HOLDS EASEMENT

Any official of the District shall have the right of entry into buildings or premises regulated by this Resolution for the purpose of examining and inspecting the construction or condition of such sewer, cesspool, septic tank or appurtenances, and every person owning, controlling or otherwise occupying such structure or premises shall permit such entrance and give such aid as may be necessary or required for such examination and inspection.

400-4 RIGHT OF ENTRY TO INSPECT CONSTRUCTION

Any official of the District shall have the right of entry into buildings or premises regulated by this Resolution for the purpose of examining and inspecting the construction or condition of such sewer or appurtenances, and every person owning, controlling or otherwise occupying such structure or premises shall permit such entrance and give such aid as may be necessary or required for such examination and inspection.

400-5 COMPLIANCE OF CONSTRUCTION

All construction and installation made pursuant to the provisions of this Resolution shall be subject to inspection by and shall meet with the acceptance of the inspector. The acceptance by the inspector shall not relieve any person from fully complying with all of the provisions of this Resolution and any and all amendments thereto.

400-6 REQUEST FOR CONSTRUCTION INSPECTION

When the construction or installation is ready for inspection, the permittee shall request an inspection by the inspector and the inspector shall make such inspection within a reasonable time after such request is made by the permittee. The inspector, at his discretion, may request the permittee to file a written request for inspection at least twenty-four (24) hours before the inspection is to be made.

400-7 WORK NONCOMPLIANCE

Whenever any sewer work is being done contrary to the provisions of the District Improvement Standards and the provisions of this Resolution, the inspector will not accept any of these facilities into the District until corrections are made and the facilities comply.

400-8 FREQUENCY OF INSPECTIONS -- OBSTRUCTING ACCESS

The inspector may inspect as often as deemed necessary every sewage pumping plant, building sewer, dilution basin, neutralization basin, backwater trap or valve or other similar appurtenances, for the purpose of ascertaining whether such facilities are maintained and operated in accordance with the provisions of this Resolution. All persons shall permit the inspector to have access to all such facilities at all reasonable times. No object, whether a temporary or permanent structure, nor any object which is difficult to remove, shall be placed in such a position so as to interfere with the ready and easy access to any such facility. Any such obstruction, upon the request of the inspector, shall be immediately removed at no expense to the District and shall not be replaced.

- A. The District hereby reserves the right to inspect any existing lateral or collecting sewers that discharge wastewater directly or indirectly to trunk sewers. If it is found that such lateral or collecting sewers are improperly used or improperly maintained, thereby causing discharge of septic wastewater, excessive groundwater, debris or any other objectionable substance to the District's sewers, the District will give written notice of the unsatisfactory condition to the offending discharger and shall direct the condition be corrected within the period specified by the District.
- B. In cases of continued noncompliance with the District's directive, the District may disconnect the offending discharger from the District's sewerage system and/or disconnect water service to the premises.

SECTION 500**DISCHARGES****500-1 PROHIBITED UNPOLLUTED DRAINAGE**

No person shall discharge or cause to be discharged any storm water, surface water, ground water, roof runoff, subsurface drainage, uncontaminated cooling water, or unpolluted industrial process waters to any public sewer.

500-2 PROHIBITED DISCHARGES

No person shall discharge or cause to be discharged any of the following described waters or wastes to any public sewers:

- A. No person shall discharge wastewater as described below or containing constituents in excess of the quantities listed below:

Constituent	Limit mg/l
Arsenic	0.01
Boron	1.5
Cadmium	0.1
Total Identifiable Chlorinated Hydrocarbons	0.02
Chloride	120.0
Chromium (Total)	1.0
Copper	1.0
Cyanide (Total)	0.1
Cyanide (Free)	0.05
Lead	0.05
Mercury	0.01

Constituent	Limit mg/l
Nickel	0.5
PCB's and Pesticides	0.1
Phenols and Derivatives	0.1
Selenium	0.1
Silver	0.2
Total Sulfide	1.0
Dissolved Sulfide	0.5
Total Toxic Organics (as defined by the EPA)	0.1
Zinc	1.0

The term "free cyanides" shall mean those cyanides amenable to chlorination as described in the latest edition of the Annual Book of ASTM Standards, Standard D 2036, Method B.

B. No person shall discharge any wastewater per the following:

1. Containing more than 50 mg/l of oil or grease of mineral or petroleum origin.
2. Containing more than 150 mg/l of oil or grease of animal or vegetable origin.
3. Containing parts of the human anatomy.
4. In violation of any applicable federal or state standards or other local regulations covering wastewater disposal.
5. Containing constituents in excess of the levels stated in their annual discharge permit.

C. Any gasoline, benzene, naphtha, fuel oil, kerosene, toluene, xylene, ethers, alcohol, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides, and sulfides, or other flammable or explosive liquid, solid or gas that is a fire hazard or explosion hazard to the system.

D. Any waters or wastes containing toxic or poisonous solids, liquids, or gases in sufficient quantity, either singly or by interaction with other wastes which may injure or interfere with any sewage treatment process, constitute a hazard to humans or animals, create a public nuisance, or create any hazard in the receiving waters of the sewage treatment plant.

E. Any wastewater with a pH less than 6 or greater than 9.0, or having any corrosive or detrimental characteristic that may cause injury to wastewater treatment or maintenance personnel, or may cause damage to structures, equipment or other physical facilities of the sewerage system.

Discharge of wastewater with a pH greater than 9.0 may be allowed with the approval of the District Manager.

- F. Solid or viscous substances in quantities or of such size capable of causing obstruction to the flow in sewers, or damage to the sewerage facilities, or other interference with the proper operation of the sewage works such as, but not limited to, ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, blood, paunch manure, hair, hides or fleshings, entrails, and paper dishes, cups, milk containers, etc., either whole or ground by garbage grinders, grease, garbage particles greater than one-fourth inch in any dimension, animal internal parts or tissue, bones, spent lime, stone or marble dust, grass clippings, spent grains, spent hops, wastepaper, glass grinding or polishing wastes.
- G. The release of toxic, hazardous wastes, malodorous gas or malodorous gas producing substances that can pass through the wastewater treatment plant making it unsuitable for disposal.
- H. Any waste with an incompatible pollutant in excess of that permitted in the District's permit or special agreement.
- I. Any waste which causes the District's effluent or any other product of the treatment process, residues, sludges, or scums, to be unsuitable for reclamation, reuse, or disposal.
- J. Discoloration or any other condition which affects the quality of the District's treatment works effluent in such a manner that receiving water quality requirements established by regulatory agencies cannot be met.
- K. Quantities or rates of flow which overload the District's collection of treatment facilities, or cause excessive District collection or treatment cost, or use a disproportionate share of the District's facilities.
- L. Conditions which violate any statute or any rule, regulation, or Resolution of any public agency or state or federal regulatory body having jurisdiction over the discharge of wastewater through the sanitary sewer system.
- M. Any waste having a temperature of 150°F. (degrees Fahrenheit) or higher or which would result in effluent temperatures at the treatment plant in excess of 104°F.
- N. Any waters or wastes having a 5-day B.O.D. greater than two hundred and fifty (250) mg/l.
- O. Any waters or wastes containing more than two hundred fifty (250) mg/l of suspended solids.
- P. Any wastes requiring an excessive quantity of chlorine or other chemical compound used for disinfection purposes.
- Q. Any water or wastes containing algaecides, fungicides, antibiotics, insecticides, herbicides, strong oxidizing agents, or strong reducing agents.

- R. Any wastewater containing substances that may precipitate, solidify, or become viscous at temperatures between 40oF. and 100oF.
- S. A slug load or any waste stream that has a flow rate or contains a concentration or quantity of pollutants that exceeds for any time period longer than fifteen (15) minutes more than five (5) times the average twenty-four (24) hour flow rate, concentration or quantity during normal operation.
- T. Any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by applicable state or federal regulations.
- U. Impairment of the effective maintenance or operation of the sewerage system.

500-3 POTENTIALLY HARMFUL DISCHARGES

No person shall discharge or cause to be discharged to the public sewer any substances, materials, waters, or wastes if it appears likely, in the opinion of the District Manager or inspector, that such wastes may harm either the sewers, sewage treatment process or equipment, have an adverse effect on the receiving stream, or may otherwise endanger life, limb, public property or constitute a nuisance. In forming an opinion as to the acceptability of these wastes, the District Manager or inspector will give consideration to such factors as the quantities of subject wastes in relation to flows and velocities in the sewers, materials of construction of the sewers, nature of the sewage treatment process, capacity of the sewage treatment plant, degree of treatability of wastes in the sewage treatment plant, and other pertinent factors. The District Manager shall reserve the right to limit any discharger or the discharge of any constituent to the sewage system which causes or has the potential to cause a violation of regulations enforced by state, federal, or other public agencies of jurisdiction.

500-4 CHARGE FOR EXCESSIVE SEWER MAINTENANCE

No person shall discharge or cause to be discharged to a trunk sewer, either directly or indirectly, any waste that creates a stoppage, plugging, breakage, any reduction in sewer capacity or any other damage to sewers or sewerage facilities of the District. Any excessive sewer or sewerage maintenance expenses attributable thereto will be charged to the offending discharger by the District.

500-5 DETERMINATION OF B.O.D. AND S.S.

The values of B.O.D. and S.S. to be used in determining the strength of industrial wastes or domestic sewage shall be the average of at least four (4) samples taken within a two-week period. Where feasible, samples shall be obtained through flow-proportional composite sampling techniques specified in the applicable Federal Categorical Pretreatment Standard. Where composite sampling is not feasible, grab samples are acceptable.

500-6 ACTION WHEN POSSIBLY DELETERIOUS SUBSTANCES ARE DISCHARGED

If any waters or wastes are discharged, or are proposed to be discharged to the public sewers, which waters contain the substances or possess the characteristics enumerated in this Resolution, and which in the judgment of the District may have a deleterious effect upon the sewage works, processes,

equipment, or receiving waters, or which otherwise may create a hazard to life or constitute a public nuisance, the District Manager may:

- A. Reject the wastes;
- B. Require pretreatment to an acceptable condition for discharge to the public sewers;
- C. Require control over the quantities and rates of discharge; and/or
- D. Require payment to cover the added cost of handling and treating the wastes not covered by existing taxes or sewer charges.

If the District Manager permits the pretreatment or equalization of waste flows, the design and installation of the plants and equipment shall be subject to the review, inspection and approval of the District, and subject to the requirements of all applicable codes, resolutions and laws.

500-7 MAINTENANCE OF FACILITIES

Where preliminary treatment of flow equalizing facilities are provided for any water or waste, they shall be maintained continuously in satisfactory and effective operation by the owner, at their expense.

500-8 BACKWASH WATER FROM SWIMMING POOLS

Backwash water from swimming pool filters shall be connected to and discharged into a public sewer by an approved connection including a required air gap separation.

500-9 DRAINING SWIMMING POOL INTO PUBLIC SEWER

It is unlawful for any person to drain or empty or cause to be drained or emptied any swimming pool into any public sewer without first obtaining written approval from the District Manager.

500-10 DILUTION WATER

The practice of adding dilution water for the purpose of diluting wastes which would otherwise exceed applicable maximum concentration limitations will not be allowed.

500-11 ACCIDENTAL DISCHARGES

- A. Each user will ensure that the wastewater treatment plant is protected from accidental discharge of prohibited materials, other substances regulated by this chapter, or other "problem" discharges, including slug loadings. Such protection shall be provided and maintained by the user at the owner's or user's own cost and expense. Detailed plans showing protection shall be submitted to the District for review and shall be approved by the District before construction of the facility. All existing users shall complete such a plan within twelve (12) months of the date that this Resolution becomes effective. No user who commences contribution to the wastewater treatment plant after the effective date of these amendments to this Resolution shall be permitted to introduce pollutant(s) into the system until accidental discharge procedures have been approved by the District.

Review and approval of such plans and operation procedures shall not relieve the industrial user from the responsibility to modify the user's facility as necessary to meet the requirements of this chapter. In the case of an accidental discharge, it is the responsibility of the user to immediately telephone and notify the wastewater treatment plant of the incident. The notification shall include location of discharge, type of waste, concentration and volume and corrective actions. Any fines or penalties incurred by the District as a result of an accidental discharge shall be assessed against the accidental discharger.

- B. Within five (5) days following an accidental discharge, the user shall submit to the District Manager a detailed written report describing the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the wastewater treatment plant, fish kills, or any other damage to person or property; nor shall such notification relieve the user of any fines, civil penalties, or other liability which may be imposed by this Resolution or other applicable law.

500-12 WASTEWATER DISCHARGE SURVEYS

All potential dischargers, as determined by the District, may be required to have an annually updated Discharge Survey Report on file with the District. The Discharge Survey Report may include, but not be limited to, nature of user's business, production quantities, hours of operation, number and classification of employees, or other information which relates to the user's operation, including wastewater discharge. Such reports may also include the chemical constituents and quantity of liquid or gaseous materials stored on site even though they are not normally discharged.

SECTION 600

DOMESTIC USE

600-1 GENERAL

Domestic wastewater shall mean water carried wastes produced from non-industrial activities and which result from normal human living processes. The District shall accept flows from the following plumbing fixtures unless unusual circumstances prevent the District from doing so:

Toilets, urinals, bidets, sinks for domestic faucets, showers, bathtubs, connections for dishwashers, drinking fountains, domestic washing machines, garbage disposals, and public restrooms.

Domestic wastewater also includes sewage from the operations of restaurants, hotels, vehicle service stations, garages, single or multiple residences or places of retail business.

600-2 DISCHARGE OF RAINWATER OR UNCONTAMINATED WATER

No person shall discharge or cause to be discharged any rainwater, storm water, groundwater, street drainage, subsurface drainage, yard drainage, water from yard fountains, ponds, lawn sprays, or any other uncontaminated water into any

sewerage facility which directly or indirectly discharges to facilities owned by the District.

600-3 PROHIBITED WASTE DISCHARGES

Section 500 of this Resolution summarizes prohibited waste discharges and other requirements pertaining to domestic and industrial waste discharges.

SECTION 700

INDUSTRIAL USE

700-1 MANDATORY DISCHARGE PERMITS

All users proposing to connect to or discharge into the District's sewer shall obtain a wastewater discharge permit before connecting to or discharging into the District's sewer. All existing users shall obtain a wastewater discharge permit within one hundred eighty days (180) after the effective date of this Resolution. All discharge permits are subject to all provisions of this Resolution and all other regulations, charges for use and fees established by the District. The conditions of wastewater discharge permits shall be uniformly enforced by the District in accordance with this Resolution and all applicable state and federal regulations.

700-2 TEMPORARY PERMITS

A permit shall be required of all users granted temporary permission to discharge unpolluted water, storm drainage, and groundwater into the District's sewer. This temporary permit may be granted when no alternative method of disposal is reasonably available. The provisions of Section 500 of this Resolution pertaining to wastewater strength and characteristics shall apply.

Users granted permission to discharge wastes of uncertain effect upon the treatment process may require bonding from the District.

700-3 WASTE HAULER PERMITS

All waste haulers discharging septic wastes into the District's Treatment Works shall obtain a waste hauler discharger permit. The provisions of Section 500 of this Resolution pertaining to wastewater strength and characteristics shall apply. Waste haulers shall also be subject to all state, county, and Resource Conservation and Recovery Act (RCRA) regulations related to waste disposal.

Discharge of septic tank, seepage pit, interceptor or cesspool contents or other wastes containing no industrial wastes may be made by persons holding a District Waste Hauler Discharge Permit at the District's designated public dumping manhole. Truck transported industrial wastes shall be discharged only at the locations and times designated by the District Manager.

Users seeking a wastewater discharge permit shall complete and file, with the District, an application in the form prescribed by the District. The applicant may be required to submit, in units and terms appropriate for evaluation, the following information:

- A. Name, address, and Standard Industrial Classification (SIC) number of applicant.
- B. Names of executive officers.
- C. Type of business and products produced.
- D. Wastewater constituents and characteristics including, but not limited to, those mentioned in Section 500 as determined by a laboratory approved by the District.
- E. Time and duration of discharge.
- F. Total, average, and peak wastewater flow rates, including daily, monthly, and seasonal variations.
- G. Site plans, floor plans, mechanical and plumbing plans, and details to show all sewers and appurtenances by size, locations, and elevation, including:
 - 1. Pretreatment equipment.
 - 2. Grease, oil, and sand interceptors.
 - 3. Back-flow prevention devices.
 - 4. Chemical storage areas.
 - 5. Spill containment structures.
 - 6. Location of storm water system.
 - 7. Hazardous waste management.
- H. Material safety data sheets for chemicals stored on the premises.
- I. Spill prevention and control measures.

Other information may be required to properly evaluate the permit application. After evaluation and acceptance of the information supplied, the District may issue the appropriate permit to discharge wastewater.

Wastewater discharge permits shall be expressly subject to all provisions of this Resolution and all other resolutions, regulations, charges and fees established by the District. The conditions of wastewater discharge permits shall be uniformly enforced by the District Manager in accordance with this Resolution, and applicable state and federal regulations. Permits may contain the following:

- A. The unit charge or schedule of charges and fees for the wastewater to be discharged to a District sewer;
- B. The average and maximum allowable wastewater constituents and characteristics;
- C. Limits on rate and time of discharge or requirements for flow regulations and equalization;
- D. Requirements for installation of monitoring, inspection, and sampling facilities;
- E. Pre-treatment requirements;
- F. Specifications for monitoring programs which may include sampling locations, frequency, and method of sampling, number, types, standards for tests reporting schedule, and frequency of calibration of flow monitoring equipment and other required instrumentation;
- G. Requirements for submission of technical reports or discharge reports;
- H. Requirements for maintaining plant records relating to wastewater discharge as specified by the County and affording the District access thereto;
- I. Mean and maximum mass emission rates, or other appropriate limits when discharging incompatible pollutants (as in the user's wastewater discharge); and
- J. Other conditions as deemed appropriate by the District to insure compliance with this Resolution.

700-6 DURATION OF PERMITS

All permits shall be issued for a period of one year, unless determined otherwise by the District Manager. All users must apply for permit renewal a minimum of ninety (90) days prior to the expiration of the existing permit.

700-7 PERMIT MODIFICATIONS

Within ninety (90) days of the promulgation of a federal categorical pretreatment standard, the wastewater discharge permit of users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user, subject to a federal categorical pretreatment standard, has not previously submitted an application for a wastewater discharge permit the user shall apply for a wastewater discharge permit within ninety (90) days after the promulgation of the applicable federal categorical pretreatment standard.

The terms and conditions of the permit may be subject to modification by the District during the term of the permit as limitations or requirements are modified or other just cause exists. The user shall be informed of any proposed changes in his permit at least thirty (30) days prior to the effective date of change. Any change or new conditions in the permit shall include a reasonable time schedule for compliance.

Special agreements between the District and any persons or agencies may be established when, in the opinion of the District, unusual or extraordinary circumstances compel special terms and conditions. Such special agreements may contain special provisions relating to the particular industry with which the agreement is made. All such agreements shall be subject to meeting provisions of all regulating agencies, including the federal categorical pretreatment standards.

Industrial wastewater discharge permits for dischargers located outside of the District's service area will not be allowed by the District.

- A. Any industrial user who performs the following actions, or who violates any condition of its permit, or applicable state and federal regulations, is subject to having its permit revoked.
1. A person knowingly giving false statements, representation of records, reports, plans, or other documents to the District or falsifying, tampering, or knowingly rendering inaccurate any monitoring device or method required under this Resolution.
 2. Failure of the user to report significant changes in operations or wastewater constituents and characteristics.
 3. Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring.
 4. Violation of the permit requirements or condition and/or violations of this Resolution.
 5. Failure to pay fees and charges for the use of the District's sewerage facilities as established pursuant to this Resolution.
- B. When the District Manager or his designated representative has reason to believe that any grounds as enumerated in subsection (A) above exist for the revocation of a permit, a notice shall be sent to the permittee by certified mail. Said notice shall set forth the time and place where the charges shall be heard by the District Manager or such person as may be designated by the District Manager. The hearing date shall not be less than fifteen (15) days from the mailing of such notice to the permittee as shown on the permit. At the hearing, the permittee shall have an opportunity to respond to the allegations set forth in the notice.
- C. After the hearing, the District Manager or his designee shall make his determination and should he find grounds exist for the revocation of the permittee's permit, he shall have the right to revoke that permit. In such event, the District Manager shall immediately refer the matter to the Board of Directors without need for permittee to appeal. The decision shall be reduced to writing within thirty (30) days after submission of the cause by the parties thereto, and shall contain a brief statement of facts found to be true, the order of the District Manager or other person

sitting as hearing officer. A copy shall be mailed or delivered to the permittee or his legal counsel.

- D. The determination of the District Manager or his designee shall be final in all respects fifteen (15) days after mailing his decision to permittee; however, if reconsideration or appeal to the Board of Directors is sought by permittee pursuant to Section 700-11. The decision is final on the date that reconsideration is decided or the decision rendered by the Board.
- E. The revocation hearing shall be conducted in accordance with procedures established by the Board of Directors and approved by the District's Attorney.

700-11 APPEAL FOR PERMIT REVOCATION

- A. Any user, permit applicant, or permit holder affected by any decision, action, or determination made by the District Manager interpreting or implementing the provisions of this Resolution or in any permit issued herein, may file with the District Manager a written request for reconsideration within ten (10) days setting forth in detail the facts supporting the user's request for reconsideration. Such facts must include a statement listing newly discovered relevant facts that were not known or available to the user at the date of the hearing. The District Manager shall render a decision on the request for reconsideration to the user, permit applicant or permit holder in writing within fifteen (15) days of receipt of request. If the ruling on the request for reconsideration made by the District Manager is unacceptable, the person requesting reconsideration may, within ten (10) days after the date of notification of the District Manager's action, file a written appeal to the Board of Directors.
- B. A fee of one hundred dollars (\$100.00) shall accompany any appeal to the Board of Directors. This fee may, at the sole discretion of the Board of Directors, be refunded if the final appeal ruling is in favor of the appellant.
- C. The written appeal shall be heard by the Board of Directors within thirty (30) days from the date of filing. The Board shall make a final ruling on the appeal within fifteen (15) days from the date of hearing the appeal.

700-12 APPLICATION EXCEEDING CAPACITY OF SYSTEM

In the event of demands upon the sewerage system by several applicants which in the aggregate exceed the surplus capacity of such sewerage system, the District Manager shall prorate among the several applicants the available carrying and treatment capacity upon an equitable basis, taking into consideration the total amount of industrial wastes of each applicant and the character and quantity of such wastes.

700-13 INSPECTION MANHOLE AND OTHER OBSERVATION AND SAMPLING EQUIPMENT

When required by the District, the owner of any property serviced by a building sewer carrying industrial wastes shall install a suitable inspection manhole together with such necessary meters and other appurtenances in the building sewer to facilitate observation, sampling, and measurement of the wastes. The piping to and from the manhole or sampling compartment shall be arranged so that observations may be made of all of the industrial liquid waste flow prior to

admixture with domestic sewage and so that the industrial liquid waste flow may be plugged off without impeding the flow of domestic sewage. Such manhole, when required, shall be accessible and safely located and shall be constructed in accordance with plans approved by the District. The manhole shall be installed by the owner at his expense and shall be maintained by him so as to be safe and accessible at all times. The owner shall bear all costs of sampling and analyses as required by the District.

700-14 DETERMINATION OF MEASUREMENTS AND TESTS

All measurements, tests, and analysis of the characteristics of waters and wastes to which reference is made in this Section shall be determined in accordance with the latest edition of Standard Methods and shall be determined at the inspection manhole provided, or upon suitable samples taken at the inspection manhole. In the event that no special manhole has been required, the inspection manhole shall be considered to be the nearest downstream manhole in the public sewer to the point at which the building sewer is connected. Sampling shall be carried out by customarily accepted methods to reflect the effect of constituents upon the sewage works and to determine the existence of hazards to life, limb and property, (The particular analysis involved will determine whether a twenty-four (24) hour composite of all outfalls of a premises is appropriate or whether a grab sample or samples should be taken. Normally, but not always, B.O.D. and suspended solids analysis are obtained from twenty-four (24) hour composites of all outfalls whereas pH's are determined from periodic grab samples.) The owner shall bear all costs of sampling and analyses as required by the District.

700-15 INSTALLATION OF MEASURING DEVICE

The District may require the person to whom an industrial liquid waste permit has been issued, to install a measuring device at that person's expense, so that the measurement of the flow may be made. If there is a possibility of the industrial liquid waste consisting of low pH acidic waste or high pH basic waste, the District may require the installation of pH recording equipment at that person's expense, and if such recording equipment is required and installed, the record shall be submitted to the District. The District may require a person to whom an industrial liquid waste permit is issued to provide, at his own expense, for inspection of the quality of the industrial liquid waste or performance of industrial liquid waste pretreatment facilities by an impartial third party, which party shall meet the approval of the District. Such third party shall furnish to the District a signed copy of such report. The District may require a person to whom an industrial liquid waste permit is issued to report to him from time to time the nature and amount of materials processed by the industry and such other information as the District may find necessary to evaluate the effect of industrial liquid waste on the public sewer.

700-16 INDUSTRIAL LIQUID WASTE DISCHARGED SEPARATELY FROM SANITARY SEWAGE

Whenever an applicant seeks a permit for a connection which will principally discharge industrial liquid waste, the District Manager may as a condition to granting such permit require that industrial liquid waste be discharged separately from sanitary sewage into a manhole on the main line.

700-17 ALTERATIONS IN EQUIPMENT

If a person to whom an industrial liquid waste permit is issued desires to make any alterations in his pretreatment facilities or alteration of connections to

the sewer, or if such person desires to discharge additional industrial liquid waste into a main line sewer in excess of the amount previously authorized or desires to discharge into a main line sewer industrial liquid waste of a different kind or character than previously authorized, he shall file an application for such a change with the District Manager, and request that a new permit be issued.

700-18 APPLICATION FOR SEWAGE PUMPING

An application for permission to construct a sewage pumping plant shall be accompanied by such plans or layout as the District may require. An application for a sewage pretreatment plant or special facilities to make industrial liquid waste acceptable as provided in this Section shall be accompanied by three (3) copies of the plans showing the method of collection and pretreatment to be used. The District shall check the plans and if the same comply with the provisions of this Section, all other applicable statutes and resolutions and are adaptable to the District's sewage system, the District shall approve such plans. The approval of such plans by the District shall not be construed as approving the adequacy or efficiency of any pumping plant, pretreatment plant or special facilities. It shall be the responsibility of the applicant to provide facilities which will meet the requirements of this Section and all other laws or resolutions applicable to the discharge of sewage into a public sewer.

700-19 FRESH WATER SUPPLY

Every industrial liquid waste pretreatment plant shall be equipped with an adequate fresh water supply readily available for flushing. All sewer connections shall be thoroughly flushed after discharge of industrial liquid waste.

700-20 APPLICATION OF REQUIREMENTS

The requirements contained in this Section covering the maintenance of sanitary sewage treatment plants, sewage pumping plants, industrial liquid waste pretreatment plants, interceptors or other appurtenances shall apply to all such facilities now existing or hereafter constructed. All such facilities shall be maintained by the owners thereof in a safe and sanitary condition and all devices or safeguards which are required by this Section for the operation of such facilities shall be maintained in good working order. This chapter shall not be construed as permitting the removal or non-maintenance of any device or safeguards or existing facilities unless authorized in writing by the District.

700-21 PRETREATMENT STANDARDS

As a condition of the permit, all industrial users shall be required to meet federal pretreatment requirements as prescribed for the specific industries in the federal register. Should more stringent pretreatment requirements be prescribed by state or local authorities, then those requirements shall be met. Failure to comply with pretreatment requirements shall be grounds for revocation of the disposal permit as prescribed in Sections 700-32 and 700-33.

700-22 TRANSFERABILITY OF PERMIT

Industrial waste permits issued under this Section are not transferable except as otherwise provided in this Section.

700-23 LETTER FOR PERMIT TRANSFER

Industrial waste permits may be transferred provided that a letter is written to the District and signed by both the permittee and the successor in interest to the permittee stating the following:

- A. The type of business will remain the same as stated in the permit;
- B. No additional sewer connections will be required;
- C. The quantity and quality of the industrial waste will remain as stated in the permit;
- D. The successor-in-interest's name, company name, address and telephone number.

Provided the above conditions are complied with and the adequacy or efficiency of any permit transfer, the District shall issue, in writing, permission for the transfer.

700-24 TRANSFER OF PERMIT - CHANGE IN DISCHARGE

If the person to whom the transfer is made desires to change the character or increase the amount of the industrial waste discharged to the public sewer or, if additional connections to the sewer are to be made, from that stated on the original permit, such person shall apply for and obtain a new permit as provided for in this Section.

700-25 WASTEWATER DISPOSAL

All wastewater, as defined elsewhere in this Section, shall be treated, reclaimed or disposed of in a manner prescribed by the applicable chapter of the Uniform Plumbing Code or as stated in this Section. The applicant for a wastewater permit shall furnish all information required by the District. The District, if deemed necessary, may require plans of the proposed plumbing connection, interceptor and other appurtenances. If the applicant complies with all regulations and resolutions of the District, the District may issue a revocable permit to the applicant. Conditions and/or restrictions may be added to the permit as deemed necessary by the District in order that the public sewer may serve its intended purpose.

700-26 INTERCEPTORS

The District may require that wastewater discharged into a public sewer be routed through an interceptor, which interceptor shall be constructed and maintained by the person to whom a wastewater permit is issued. The design of such interceptor shall meet with the approval of the District. The interceptor shall at all reasonable times be available and accessible to the District or other persons authorized by law to make such inspections. The piping to and from any interceptor shall be arranged so that wastewater will flow through the interceptor prior to a mixture with domestic sewage and so that wastewater flow may be plugged off without impeding the flow of domestic sewage. If an interceptor is required, the person to whom a wastewater disposal permit is issued shall provide an interceptor of sufficient size and capacity so that wastewater will be detained in the interceptor for at least one-half (1/2) hour at maximum flow. The interceptor shall be water-tight and structurally sound and durable. It shall be easily accessible for cleaning by permittee and for

inspection by the inspector or other authorized personnel. The failure of a person to keep the interceptor in proper working condition shall constitute grounds for termination of the revocable permit and the capping or plugging of the wastewater connecting sewer. An interceptor shall not be considered as properly maintained if sand and oil accumulations total more than twenty-five percent (25%) of the operating fluid capacity.

700-27 MANHOLES OR SAMPLING COMPARTMENTS

The District may require that all wastewater discharged into a public sewer maintained by the District be routed through a manhole or sampling compartment which shall be constructed and maintained by the person to whom a wastewater permit is issued. The design of such manhole or sampling compartment shall meet with the approval of the District Manager. The manhole or sampling compartment shall be available and accessible at all times to the inspector or other persons authorized by law to make such inspections. The piping to and from the manhole or sampling compartment shall be arranged so that observations may be made for all of the wastewater flow prior to mixture with domestic sewage and so that the wastewater flow may be plugged off without impeding the flow of domestic sewage.

700-28 GREASE, OIL, AND SAND INTERCEPTORS

Grease, oil and sand interceptors shall be provided when, in the opinion of the District they are necessary for the proper handling of liquid wastes containing grease in excessive amounts, or any flammable wastes, sand, or other harmful ingredients; except that such interceptors shall not be required for private living quarters or dwelling units. All interceptors shall be for a type and capacity approved by the District Manager, and shall be located as to be readily and easily accessible for cleaning and inspection.

700-29 ACCEPTABILITY OF INTERCEPTORS

Any interceptor properly installed before the effective date of this Resolution, codified herein, shall be acceptable; provided such interceptor is effective in removing sand and oil and is so designed and installed that it may be inspected and properly maintained. If the inspector finds that such interceptor is incapable of adequately retaining the sand and oil in the wastewater flow, he shall refuse to issue a wastewater disposal permit until an interceptor is provided which will meet the requirements of this Section.

700-30 VEHICLE WASH RACK

No person operating a vehicle wash rack shall permit any water or effluent therefrom, to flow into any public sewer or building sewer unless such wash rack is so constructed that rain water and surface drainage will not flow into the wash rack area. The wash rack shall meet all requirements of Section 710 of the Uniform Plumbing Code, unless the District approves exceptions thereto.

700-31 APPLICATION TO DISCHARGE ADDITIONAL WASTEWATER

If a person to whom a wastewater disposal permit has been issued desires to discharge additional wastewater into a main line sewer in excess of the amount previously authorized, they shall file an application and request the District and/or inspector to issue a new permit.

If the inspector finds that the person to whom an industrial liquid waste permit or a wastewater disposal permit has been issued has not complied with the provisions of the permit, or has failed to comply with the provisions of this Section or other applicable resolutions or statutes governing the discharge of industrial liquid waste or wastewater into a main line sewer, or such person supplied false or misleading information in his application or if the discharge of industrial liquid waste or wastewater into a main line sewer causes a nuisance in the operation of a main line sewer, the District may give such a person a ten (10) day notice, in writing, specifying the manner in which such person has failed to comply with the provisions of the permit, or the manner in which the discharge constitutes an unreasonable burden in the operation of a main line sewer. Notices shall be administered as outlined in Section 100-7. If such person within the time specified in the notice does not remedy the condition, or conditions, specified in the notice, the District Manager may revoke the permit and cause to be capped the industrial liquid waste outlet or the wastewater outlet so that industrial liquid waste or wastewater disposal will not be discharged into a main line sewer.

If, after an industrial liquid waste disposal permit or a wastewater disposal permit has been issued, the District ascertains that the capacity of the main line sewer into which industrial liquid waste or wastewater is discharged is insufficient to handle the sewage sought to be discharged into such main line sewer, the District may, after the delivery of at least a ten (10) day notice, in writing, to the person to whom such industrial liquid waste disposal permit or wastewater disposal permit has been issued, either:

- A. Cancel the permit previously issued authorizing the discharge of industrial liquid waste or wastewater into a main line sewer;
- B. Modify any such permit by reducing the amount of industrial liquid waste or wastewater which may be discharged into a main line sewer; or
- C. Limit the period of time during which industrial liquid waste or wastewater may be discharged into a main line sewer.

Notices shall be administered as outlined in Section 100-7.

If the discharge of industrial liquid waste or wastewater into a main line sewer pursuant to a permit issued by the District results in increased sewer maintenance costs to the District, the person to whom an industrial liquid waste permit or a wastewater disposal permit has been issued, shall reimburse the District for any increase in maintenance costs resulting from such discharge. If the District Manager ascertains that increased maintenance costs have resulted from the discharge of industrial liquid waste or wastewater into a main line sewer, the District Manager shall prepare and deliver to the person to whom the industrial liquid waste disposal permit or wastewater disposal permit has been issued, a statement of such increased maintenance cost and such person shall pay the sum to the District office within fifteen (15) days after the presentation of such statement.

700-35 RIGHT OF ENTRY

The inspector and other duly authorized employees of the District bearing proper credentials and identification shall be permitted to enter all wastewater facilities of all properties served by the District for purposes of inspection, observation, measurement, sampling, testing, inspection and copying of records or documents, or any other duty in accordance with the provisions of this Resolution.

700-36 MONITORING FACILITIES

Users who propose to discharge, or who in the judgment of the District could discharge now or in the future, wastewater with constituents and characteristics different from that produced by a dwelling unit may be required to install a monitoring facility.

When more than one user can discharge into a common building sewer, the District may require installation of a separate monitoring facility for each use. When, in the judgment of the District there is a significant difference in wastewater constituents and characteristics produced by different operations of a single user, the District may require that separate monitoring facilities be installed for each separate discharge.

Monitoring facilities that are required to be installed shall be constructed, operated, and maintained at the user's expense. The purpose of the facility is to enable inspection, sampling, and flow measurement of wastewaters produced by a user. If sampling or metering equipment is also required by the District, it shall be provided, installed, and operated at the user's expense. The monitoring facility will normally be required to be located on the user's premises outside of the building. The District may, however, when such a location would be impractical or cause undue hardship on the user, allow the facility to be constructed in the street or sidewalk area, with the approval of the County and located so that it will not be obstructed by landscaping or parked vehicles.

If the monitoring facility is inside the user's fence, there shall be accommodations to allow safe and immediate access for District personnel, such as a gate secured with a District lock. There shall be ample room in or near such facility to allow accurate sampling and compositing of samples for analysis. The entire facility and the sampling and measuring equipment shall be maintained at all times in a safe and proper operating condition by and at the expense of the user.

Whether constructed on public or private property, the monitoring facilities shall be constructed in accordance with the District's requirements and all applicable local agency construction standards and specifications. When, in the judgment of the District, an existing user requires a monitoring facility, the user will be so notified in writing. Construction must be complete within ninety (90) days following written notification unless a time extension is otherwise granted by the District.

700-37 INSPECTION AND SAMPLING

The District may inspect the facilities of any user to ascertain whether the purpose of this Resolution is being met and all requirements are being complied with. Persons or occupants of premises where wastewater is created or discharged shall allow the District or its representatives ready access at all

reasonable times to all parts of the premises for the purposes of inspection or sampling or in the performance of any of their duties. The District shall have the right to set up on the user's property such devices as are necessary to conduct sampling or metering operations. Where a user has security measures in force which would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with their security guards so that upon presentation of suitable identification, personnel from the District will be permitted at any time to enter without delay for the purposes of performing their specific responsibilities.

- A. Any industrial user subject to a federal categorical pretreatment standard, after the compliance date of such pretreatment standard, or, in the case of a new source, after commencement of the discharge into the District's Treatment Works, shall submit to the District Manager during the months of June and December, unless required more frequently in the pretreatment standard or by the District Manager, a report indicating the nature and concentration of pollutants in the effluent which are limited by such pretreatment standards or required in the permit. At the direction of the District Manager and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the District Manager may agree to alter the months during which the above reports are to be submitted.
- B. Monthly monitoring reports submitted to the District Manager for the purpose of collecting wastewater user fees must be submitted no later than the seventh (7th) day of the month following that report.
- C. The District Manager may impose mass limitations on users where appropriate. In such cases, the report required by subparagraph (A) of this paragraph shall indicate the mass of pollutants regulated by pretreatment standards in the effluent of the user. These reports shall contain the results of samples, an analysis of the discharge, including the flow and the nature and concentration, or production and mass where requested by the District Manager, of pollutants contained therein which are limited by the applicable pretreatment standards. The frequency of monitoring shall be prescribed in the applicable pretreatment standard.

700-38 DATA COLLECTION

Measurements of flow rates, flow volumes, C.O.D., B.O.D., T.O.C., grease and suspended solids for use in determining the annual industrial wastewater treatment charges and such measurements of other constituents believed necessary by the District Manager may be required of each discharger. All sampling analyses and flow measurements of industrial wastewater shall be performed by a state certified independent laboratory approved by the District Manager, or by personnel of the District at the Owner's expense. If performed by the District's personnel, an appropriate charge shall be paid by the discharger requesting the test. Prior to the submittal to the District of data developed in the laboratory of an industrial discharger, the results shall be verified by a responsible administrative official of the industrial discharger under the penalty of perjury.

All dischargers making periodic measurements shall furnish and install at the control manhole or other appropriate location a calibrated flume, weir, flowmeter, or similar device approved by the District Manager and suitable to measure the industrial wastewater flow rate and total volume. A recording and totalizing register for flowage may be required by the District Manager. In

lieu of wastewater flow measurement, the District Manager may accept records of water usage and adjust the flow volumes by suitable factors to determine the peak and average flow rates for the specific industrial wastewater discharge. All devices used to measure the monthly wastewater discharge must be calibrated and certified monthly by an approved service. Copies of the certifications shall be submitted to the District Manager along with monitoring reports.

Those industrial wastewater dischargers required by the District Manager to make periodic measurements of the industrial wastewater flow and constituents shall annually make the minimum number of such measurements required. The minimum requirement for such periodic measurements shall be at least two (2) measurements per year of a twenty-four (24) hour duration. Representative samples of the industrial wastewater shall be obtained once per hour over the twenty-four (24) hour period, properly refrigerated, composited according to measured flow rates during the twenty-four (24) hours, and analyzed for the specified wastewater constituents. Dischargers required to sample on only a few days per year shall sample during the periods of highest wastewater flow and wastewater constituent discharges. Industrial plants with large fluctuations in the quantity or quality of wastewater may be required to provide continuous sampling and analysis for every working day. When required by the District Manager, the discharger shall install and maintain in proper order, automatic flow, proportional sampling, and/or automatic analysis and recording equipment.

Measurements to verify the quantities of waste flows and waste constituents reported by industrial dischargers will be conducted on a random basis by personnel of the District.

700-39 REPORTING REQUIREMENTS - COMPLIANCE DATE REPORT

Within ninety (90) days following the date for final compliance with applicable categorical pretreatment standards or, in the case of a new source, following commencement of the introductions of the wastewater into the wastewater treatment plant, any industrial user subject to categorical pretreatment standards and requirements shall submit to the District Manager a report indicating the nature and concentration of all pollutants in the discharge from the regulated processes which are limited by pretreatment standards or requirements. This statement shall be in compliance with the requirements of the Baseline Monitoring Report (BMR) required by Section 403.12 of the Federal Pretreatment Regulations.

700-40 CONFIDENTIAL INFORMATION

All information and data on a user obtained from reports, questionnaires, permit applications, permits, monitoring programs, and inspections shall be available to the public or other governmental agencies without restrictions, unless the user specifically requests and is able to demonstrate to the satisfaction of the District that the release of such information would divulge information, processes, trade secrets, or methods which would be detrimental to the user's competitive position.

When requested by the person furnishing the report, the portions of a report which have been determined confidential, as above, shall not be made available for inspection by the public but shall be made available to governmental agencies for their use in making studies; provided, however, portions of a report shall be available for use by the state or any state agency in judicial review for enforcement proceedings involving the person furnishing the report.

Furnishing of such information shall not waive the Constitutional right against self-incrimination.

Wastewater constituents and characteristics will not be recognized as confidential information.

700-41 DISCREPANCIES BETWEEN THE ACTUAL AND THE REPORTED INDUSTRIAL
WASTEWATER DISCHARGE QUANTITIES

Should measurements of other investigations reveal that the industrial discharger is discharging at a flow rate or at a combination of flow, biochemical oxygen demand, or suspended solids significantly in excess of that stated on the industrial wastewater permit, or in excess of the quantities reported to the District by the discharger and upon which the industrial wastewater treatment fee is based, the discharger shall apply for an amended industrial wastewater permit and shall be assessed for all delinquent charges, plus an administrative charge of ten percent (10%) of the delinquent charges. An industrial discharger found in violation shall, in the absence of other evidence, be presumed to have been discharging at the determined parameter value over the preceding three (3) years or subsequent to the previous District verification of quantity parameter, whichever period is shorter.

For the purpose of establishing the correct treatment fees, at least two (2) twenty-four (24) hour composite samples and two (2) flow measurements shall be obtained by the District, with all costs of sampling and analysis to be paid by the discharger. The data obtained from such samplings, along with any other relevant information obtained by the District or presented by the discharger, shall be used by the District Manager in determining the quantity parameters for use in the formula.

SECTION 800

USER CHARGES

800-1 DEFINITIONS

For the purpose of this Resolution, the following terms shall have or include the meanings accorded to them by this section, unless it is apparent from the context that they are used with a different meaning:

- A. "User" means any person, public or private corporation, the United States of America, the state, any county, municipality, and all governmental agencies and departments, and every officer, agent, and employee thereof during the course of his employment, who uses or deposits sewage or waste into the District's sanitary sewer system, or one whose premises and/or property is within three hundred feet (300') of said sewage facility.
- B. "Residential equivalent" means that wastewater flow equivalent in quantity and/or quality to that flow ordinarily expected from a typical single-family residence. For the purpose of establishing residential equivalents, the said flow shall be 350 gallons per day of wastewater producing a B.O.D. less than 250 mg/l and suspended solids (SS) less than 250 mg/l.

800-2 SERVICE CHARGE

The District, by Resolution, shall annually review established monthly service charges based on one "residential equivalent" (R.E.) as described in Section 800-1.

800-3 DOMESTIC USER CHARGES

The District shall use the following formulas in determining monthly user charges. Monthly user charges shall be calculated by multiplying the monthly service charge for one R.E. by the coefficient that applies. Amendments or changes of any type or nature in the resulting rates or methods of establishing rates herein described may be made annually upon proper notice and procedures as described in existing state law by and through the use of a resolution as opposed to an amendment of this Resolution.

A. Single Family Units:

Camelot residences shall pay at the monthly rate of:

$$\text{Rate} = 1.00 + \text{R.E.}$$

All other residences shall pay at the monthly rate of:

$$\text{Rate} = \text{R.E.}$$

B. Motels, Hotels, and Rooming Houses:

All hotels, rooming houses or motels shall pay at the monthly rate of:

$$\text{Rate} = \text{No. of rooms} \times 0.150 \times \text{R.E.}$$

A motel shall have the same definition as set forth in the Health and Safety Code of the State of California. A hotel or rooming house is hereby defined to be any building having not less than six (6) separate residence units and which is either (a) designed, used or intended wholly or in part for accommodation of transients or (b) where there are no cooking facilities for the preparation of meals and only sleeping quarters are rented.

C. Duplexes, Triplexes and Apartment House Units:

All owners or tenants of duplexes, triplexes or apartment houses shall pay at the following monthly rate:

$$\text{Rate} = \text{No. of living units} \times 0.667 \times \text{R.E.}$$

D. Trailer Courts or Mobile Home Parks:

All owners shall pay at the following monthly rate:

$$\text{Rate} = \text{No. of occupied spaces} \times 0.667 \times \text{R.E.}$$

E. Recreational Vehicle Parks:

All recreational vehicle parks shall pay at the monthly rate of:

$$\text{Rate} = \text{No. of spaces} \times 0.183 \times \text{R.E.}$$

F. Small businesses:

All small businesses shall pay at the monthly rate of:

$$\text{Rate} = \text{R.E.}$$

G. Large businesses:

All large businesses shall pay at the monthly rate of:

$$\text{Rate} = 3.667 \times \text{R.E.}$$

H. Supermarkets:

All supermarkets shall pay at the monthly rate of:

$$\text{Rate} = 3.667 \times \text{R.E.}$$

I. Laundromats:

All laundromats where the washing of clothes is done on the premises, as distinguished from a pick-up and delivery service, shall pay at the monthly rate of:

$$\text{Rate} = \text{No. of machines} \times 0.75 \times \text{R.E.}$$

J. Car Washes:

All car washes shall pay at the monthly rate of:

$$\text{Rate} = 3.208 \times \text{R.E.}$$

K. Restaurants and Cafes:

All restaurants and cafes, shall pay at the monthly rate of:

$$\text{Rate} = 3.667 \times \text{R.E.}$$

L. Service Stations:

All service stations shall pay at the monthly rate of:

$$\text{Rate} = 2.083 \times \text{R.E.}$$

M. Schools:

All High School and Gymnasiums shall pay at the monthly rate of:

$$\text{Rate} = 18.333 \times \text{R.E.}$$

All junior high schools shall pay at the monthly rate of:

$$\text{Rate} = 4.583 \times \text{R.E.}$$

All elementary schools shall pay at the monthly rate of:

$$\text{Rate} = 4.583 \times \text{R.E.}$$

All school support buildings shall pay at the monthly rate of:

$$\text{Rate} = \text{R.E.}$$

N. County Buildings:

All small county buildings shall pay at the monthly rate of:

$$\text{Rate} = \text{R.E.}$$

All large county buildings shall pay at the monthly rate of:

$$\text{Rate} = 3.667 \times \text{R.E.}$$

O. East Kern Airport

The East Kern Airport shall pay at the monthly rate of:

$$\text{Rate} = 22.5 \times \text{R.E.}$$

P. Churches and Fraternal Organizations:

All churches and fraternal organizations shall pay at the monthly rate of:

$$\text{Rate} = 0.667 \times \text{R.E.}$$

800-4 WASTE HAULER DISPOSAL CHARGES

A service charge is hereby established for each tank truck load of septic tank or cesspool waste which is disposed into the District's sanitary sewer disposal plants. All trucks shall pay a rate of twenty-five dollars (\$25.00) per tank truck load up to 1,000 gallons plus two dollars and fifty cents (\$2.50) for each additional 100 gallons or fractions thereof.

800-5 INDUSTRIAL CUSTOMERS

A. Customers in the industrial category shall be required to install a flow-monitoring manhole at the edge of the property line.

B. Operation and Maintenance charge:

All customers in the industrial category shall pay in monthly installments a monthly service charge for operation and maintenance costs in accordance with the following schedule:

Volume _____/MG, plus

Biochemical Oxygen Demand - _____/# B.O.D./day, or
Suspended Solids - _____/# SS/day whichever is larger.

Initially, Volume, B.O.D., and Suspended Solids values used for calculation of the monthly service charge shall be taken from the permit application. Subsequent flow measurements and analyses shall be taken by the owner at the owner's expense as required by the District in order to verify the values and adjust the monthly service charge should values differ from those originally reported. Section 700-37 and Section 700-38 detail sampling and data collection requirements for industrial users.

All other users of the sanitary sewer system shall pay a monthly rate to be established by the Board of Directors, taking into account the strength of the wastewater as well as the quantity and based on residential equivalents.